

25NWCV02929 25NWCV02929

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Division: Civil Law and Motion

Department: L

Hearing date: 2026-06-25

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Case Number: 25NWCV02929 Hearing Date: June 25, 2026 Dept: L

Attorney Keyisha R.

Anderson, Esq.'s Motions to be Relieved as Counsel are CONTINUED to July 28, 2026 at 9:30 a.m. in Dept. L.

Counsel to give
notice.

Background

This is a tenant habitability action. Attorney Keyisha R. Anderson, Esq., counsel for Plaintiffs, now moves to be relieved as counsel as to Plaintiffs Joan Marshall (individually and as Guardian ad Litem for Eric Marshall) and Alexis Clark.

The Motions are unopposed as of June 24, 2026.

Legal Standard

Good cause exists to grant a motion to be relieved as counsel based on any of the grounds under California Rules of Professional Conduct Rule 1.16(b). Rule 1.16(b) provides that an attorney may withdraw based on any of the following: (1) the client insists upon presenting a claim or defense that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law, (2) the client seeks to pursue a criminal or fraudulent course of conduct, (3) the client insists that the lawyer pursue a course of conduct that is criminal or fraudulent, (4) the client by other conduct renders it unreasonably difficult for the member to carry out the representation effectively, (5) the client

breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation, (6) the client knowingly and freely assents to termination of the representation, (7) the inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal, (8) the lawyer's mental or physical condition renders it difficult for the lawyer to carry out the representation effectively, (9) a continuation of the representation is likely to result in a violation of these rules or the State Bar Act, or (10) the lawyer believes in good faith, in a proceeding pending before a tribunal, that the tribunal will find the existence of other good cause for withdrawal.

California Rules of Court, Rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil Procedure section 284, subdivision (2): (1) a notice of motion and motion directed to the client (made on Notice of Motion and Motion to Be Relieved as Counsel—Civil (Judicial Council Form, MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subdivision (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subdivision (1) (made on Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil (Judicial Council Form, MC-052)); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (Judicial Council Form, MC-053)). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

The court has discretion to allow an attorney to withdraw, provided that there is no prejudice to the client. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.)

Discussion

Attorney Keyisha R.

Anderson, Esq. ("Counsel") filed three Notices of Motion and Motion to be Relieved as Counsel as to each Plaintiff. (See Form MC-051.) Counsel also filed proposed orders. (See Form MC-053.) Counsel's declarations demonstrate

good cause for withdrawal, stating the following: "Withdrawal is necessary because an unwaivable conflict has arisen among jointly represented plaintiff concerning implementation of accepted settlement agreements, materially limiting counsel's ability to continue providing competent, diligent, and loyal representation to all clients consistent with California Rules of Professional Conduct 1.7 and 1.16. In addition, the attorney-client relationship has deteriorated to the point that continued representation has become unreasonably difficult. Disagreements concerning settlement implementation, including issues raised regarding costs and allocation, have resulted in adverse positions among jointly represented plaintiffs, after plaintiffs [sic] accepted settlement."

(Anderson Decls., ¶ 2.)

Counsel states that the client was served copies of the Motion papers by mail at the client's last known address. (Anderson Decl., ¶ 3.) However, counsel does not indicate that the clients' last known addresses were confirmed as current via telephone or other means.

Further, the Court finds that there are no Proofs of Service filed indicating that the clients and all other appearing parties have been served the Motion papers.

Accordingly, the Motions to be Relieved as Counsel are
CONTINUED to July 28, 2026 at 9:30 a.m. in Dept. L.

Counsel is ordered to file, prior to the continued hearing,

1) amended declarations indicating whether the client's addresses have been confirmed as current, and 2) Proofs of Service indicating that all parties, including the client, have been served.